

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC052986: SEAN ZAGHIAN, et al. vs GENERAL MOTORS, LLC.

08/04/2026 in Department 44

Demurrer to Plaintiff's Complaint

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

1. Defendant General Motors LLC's Demurrer to Plaintiff's Complaint
2. Defendant General Motors LLC's Motion to Strike Portions of Plaintiffs' Complaint for Non-Compliance with Code Civ. Proc. § 871.24

Tentative Ruling:

The Court SUSTAINS the demurrer to Plaintiffs' sixth cause of action for fraud by concealment with leave to amend on statute of limitations grounds. Plaintiffs allege that they discovered GM's wrongful conduct on August 20, 2025, when they requested a buyback after the Vehicle continued to exhibit defects following unsuccessful repairs. (Compl., ¶ 24.) That allegation identifies a date but does not adequately explain the manner of discovery. The Complaint does not identify what information Plaintiffs learned on August 20, 2025, how requesting a buyback revealed GM's alleged pre-sale knowledge and concealment, or why Plaintiffs could not have discovered the alleged fraud earlier through reasonable diligence. The general allegations of equitable tolling, class-action tolling, and continuing concealment do not supply those missing facts.

The manifestation of a transmission problem does not necessarily establish discovery of GM's alleged fraud. The Complaint therefore does not establish that the claim is necessarily time-barred, but Plaintiffs have not pleaded delayed discovery with the specificity required by *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807-808. This defect is potentially curable by amendment. The demurrer to the sixth cause of action for fraudulent concealment is OVERRULED on the other grounds. Plaintiff's Complaint contains all the allegations required to show a prima facie fraud case. (See *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828, 843-44 ("*Dhital*").) In accordance with *Dhital*, the economic loss rule does bar Plaintiff's fraudulent concealment claim.

Defendant's Motion to Strike is GRANTED with leave to amend. Plaintiffs' civil-penalty allegations likewise fail to allege compliance with Code Civ. Proc. § 871.24.

Plaintiff must file any amended pleading within 20 days.

Defendant to give notice.